

23STCV24892 23STCV24892

County: los-angeles

Division: Civil Law and Motion

Department: 506

Hearing date: 2026-09-03

Motion: MOTION TO BE RELIEVED AS COUNSEL

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Case Number: 23STCV24892 Hearing Date: September 3, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MARIO ALBERTO ACOSTA,

Plaintiff,

vs.

SUHAIL T. BERBER ARROYO, et al.,

Defendants.

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CASE NO.: 23STCV24892

[TENTATIVE] ORDER RE: MOTION TO BE RELIEVED
AS COUNSEL

Dept. 506

8:30 a.m.

September 3, 2026

R.

Grace Rodriguez, counsel of record for Plaintiff Mario Acosta, seeks to be relieved
as counsel. No party opposed the motion.

Counsel

does not provide the mandatory Form MC-053 proposed order.

Absent

a showing of resulting prejudice, an attorney's request for withdrawal should be
granted. (People v. Prince (1968)

268 Cal.App.2d 398, 406.) Based on counsel's

declaration, the Court believes Plaintiff will be prejudiced by withdrawal.

Counsel

declares that on June 18, 2026, Plaintiff appeared at counsel's office to terminate
the representation, where "[t]he client's demeanor and statements on that date raised
substantial concerns regarding the client's ability to make independent and voluntary
decisions regarding this litigation." Plaintiff

read a prepared statement from his phone, was unable to explain his own words when questioned, and reversed his prior factual position on a central issue in this case. Plaintiff's stated position "was directly and materially inconsistent with the factual account he provided at the initial consultation, and appeared to be the product of external direction rather than his own independent judgment." According to counsel, Plaintiff has a documented history of traumatic brain injury, and he currently resides with his mother, who is a Defendant in this action.

"Under these circumstances, counsel cannot be confident that the client's directives reflect his own independent, informed, and voluntary judgment."

Due

to these events, and the upcoming December 28, 2026 trial date, the Court believes Plaintiff may be prejudiced by counsel's withdrawal.

Plaintiff

Mario Acosta is ordered to appear at the hearing (remote appearance permitted) to clarify these issues. If Plaintiff is unable to attend the September 3, 2026 hearing, the Court will continue the hearing to another date. The Court is not inclined to rule on the motion without hearing from Plaintiff.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 3rd day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court